

Conclusion

Plaintiff's Motion for Reconsideration is **denied**.

6. 9:00 AM CASE NUMBER: C25-01427
CASE NAME: AUGUST BLASS VS. CAL PRIVATE BANK,
*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: JASON W. ESTAVILLO
FILED BY: BLASS, AUGUST
TENTATIVE RULING:

The motion to be relieved as counsel is granted and shall be effective upon the filing of the proof of service of the signed order upon the client.

7. 9:00 AM CASE NUMBER: C25-01488
CASE NAME: JACQUELINE NAMPEERA VS. CMG MORTGAGE, INC.
*MOTION/PETITION TO COMPEL ARBITRATION
FILED BY: CMG MORTGAGE, INC.
TENTATIVE RULING:

Introduction

Before the Court is Defendant CMG Mortgage, Inc.'s (CMG or Defendant) Motion To Compel Plaintiff Jacqueline Nampeera's individual claims to binding arbitration and stay this civil action until arbitration is complete. The Motion relates to Plaintiff's Complaint for (1) Private Attorneys General Act (Lab. Code § 2698, et seq.).

Supplemental Briefing

This motion was first heard on December 5, 2025, in Department 18 of the Contra Costa Superior Court, the Honorable Danielle Douglas, presiding. Karen Gold appeared for Plaintiff while Sarju A. Naran appeared for Defendant.

Plaintiff argued at the hearing that Defendant brought new evidence in its Reply papers and declarations and stated it would be unfair for Plaintiff not to have the opportunity to brief the new evidence. The Court agreed and granted the Parties the opportunity for supplemental briefing Defendant's new evidence brought up its reply papers.

EFAA Does Not Apply Despite the Ruling in Plaintiff's RJN Ex. 1

Plaintiff posits that the ruling made in Department 16 in Contra Costa County Case No. C25-01575 forwards the proposition that Plaintiff's allegations have alleged a combination of gender and racial harassment as defined by the EFAA. Taking a closer look at the order, it is not the case.

In the Prevost v CMG Mortgage, Inc (Plaintiff's RJN Ex. 1) case, the argument forwarded by Defendant was that the EFAA did not apply because Plaintiff failed to allege severe and pervasive harassment that was not sexual in nature. Here, the argument asserted by Defendant is that Plaintiff failed to adequately allege a gender discrimination or harassment cause of action. (Reply at p.5: 18-28.)